

# Tobacco Product (Control and Regulation) Act, 2011

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Tobacco Products (Control and Regulation) Act, 2068

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Amending Act

1. Act to Amend Some Nepal Acts, 2072 2072.11.13

Act No. 1 of the Year 2068

An Act Made to Provide for the Control and Regulation of Tobacco Products

Preamble: Whereas smoking and tobacco use are extremely harmful to human health, and whereas smoking and tobacco use also have negative impacts on the economic, social, and cultural activities of human life, it is desirable to make legal provisions relating to the reduction, control, and regulation of the import, production, sale, distribution, and use of tobacco products to control such activities and enhance the health, convenience, and economic well-being of the general public. Now, therefore, the Constituent Assembly has enacted this Act pursuant to Sub-Article (1) of Article 83 of the Interim Constitution of Nepal, 2063. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Tobacco Products (Control and Regulation) Act, 2068."

(2) Section 9 of this Act shall commence on the one hundred and eightieth day from the date of certification, and the other sections shall commence on the ninety-first day. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Tobacco Product" means cigarettes, bidis, cigars, tobacco, sulfa, kakad, raw tobacco, khaini, gutka, tobacco, or other similar types of tobacco products made or produced for the purpose of smoking or tobacco use.

(b) "Smoking" means the act of consuming cigarettes, bidis, cigars, tobacco, sulfa, kakad, tobacco, or other similar types of substances.

(c) "Tobacco Use" means the act of placing khaini, gutka, tobacco, or other similar types of substances in the mouth, inhaling the fume of such substance, or consuming it.

(d) "Public Place" means a place as specified pursuant to Section 3.

(e) "Manager" means a person authorized to make final decisions in relation to the operation of a public place, and said term also includes, in the case of a public vehicle, the driver of such vehicle.

(f) "Producer" means a producer of tobacco products.

(g) "Inspector" means a person designated pursuant to Section 11.

(h) "Ministry" means the Ministry of Health and Population.

(i) "Committee" means the Tobacco Products Control and Regulation Committee constituted pursuant to Section 18.

(j) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

## Chapter-2 Control of Tobacco Products

### 3.

**Deemed as Public Place:** (1) The following places shall be deemed as public places:- (a) State and government bodies, organizations, or offices, (b) Educational institutions, libraries, training and health-related institutions, (c) Airports, air services, and public vehicles, (d) Child welfare homes, childcare centers, old age homes, orphanages, kindergartens, and clubs, (e) Public toilets, (f) Workplaces of industries and factories, (g) Movie theaters, cultural centers, and theaters, (h) Hotels, motels, resorts, restaurants, bars, eateries, canteens, lodges, hostels or dormitories, and guest houses, (i) Stadiums, covered halls, bodybuilding gyms, swimming pools, and pool houses, (j) Departmental stores and mini-markets, (k) Rest houses (Dharamshala) and religious sites, (l) Public vehicle waiting areas and ticket counters. (2) In addition to the places mentioned in Sub-section (1), other places specified by the Government of Nepal by publishing a notice in the Nepal Gazette, considering the importance and sensitivity of a location, shall also be deemed as public places. 4. **Prohibition of Smoking and Tobacco Use in Public Places:** (1) No person shall smoke or use tobacco products in a public place. (2) Notwithstanding anything contained in Sub-section (1), the Manager may make necessary arrangements for smoking and using tobacco products in a specific area of a prison, airport, or tourist-standard hotel, in a manner that does not adversely affect other persons. (3) The basic requirements to be maintained in the area designated for smoking and tobacco use pursuant to Sub-section (2) shall be as prescribed. 5. **Notice to be Posted:** The Manager shall post a notice stating that smoking and tobacco use are prohibited, in a manner visible and readable to all, at various places as required within the public place under their authority. 6. **Prohibition of Smoking inside Homes and Private Vehicles:** No person shall smoke inside a home or private vehicle in a manner that affects other persons. Chapter-3 Production and Sale Distribution of Tobacco Products 7.

**Labels, Trademarks, Wrappers, and Packaging:** (1) The Producer shall mention the following details on the packets and wrappers of tobacco products:- (a) The label and trademark registered in accordance with the prevailing law, (b) The name, address of the producer, and the amount of nicotine present in the tobacco product, (c) Other prescribed harmful elements and necessary matters. (2) The Producer shall not place any kind of logo, symbol, word, or picture that attracts minors on the packets and wrappers of tobacco products. (3) No person shall produce tobacco products using the brand or trade name of other industries or products. (4) No industry shall produce any item in the shape of cigarettes, bidis, or cigars. 8. **Details to be Submitted:** (1) Before selling or distributing a tobacco product, the Producer shall submit to the Ministry details of the amount of nicotine, harmful elements, and other necessary matters contained in such product. (2) A person who produces, exports, or imports tobacco products shall submit to the Ministry, annually, the details of the production, export, or import carried out by them. 9. **Warning Messages and Pictures to be Mentioned:** (1) The Producer shall print and affix, in the Nepali language, on at least seventy-five percent of the outer surface of the box, wrapper, packet, parcel packaging, and label of the tobacco product, a warning message as prescribed by the Ministry to the effect that tobacco products are harmful to health, and a graphical,

colored picture of the fatal effects resulting from the use of tobacco products, clearly and legibly. (2) The Ministry may add warning messages and symbols as per Sub-section (1) from time to time. (3) An importer shall not import tobacco products that do not meet the standards set out in Sub-section (1). 10. Prohibition of Advertisement and Sponsorship: No producer or any other person shall advertise or promote tobacco products or sponsor or transmit any program, news, or information through newspapers, radio, television, FM, internet, e-mail, or other electronic communication media, interaction programs, hoarding boards, wall writings, logos, signs, writings, visual displays, sounds, symbols, persons, or any other means. 11.

Restrictions on Sale, Distribution, and Display: (1) No person shall sell, distribute, or cause to be sold or distributed, or provide free of charge, tobacco products to persons who have not attained the age of eighteen years and to pregnant women. (2) For the purpose of Sub-section (1), if a seller of tobacco products wishes to ascertain the age of a buyer, they may request necessary proof from that person, and it shall be the duty of the concerned buyer to present the proof requested by the seller. (3) No person shall sell, distribute, or cause to be sold or distributed tobacco products from any house or shop located within at least one hundred meters of educational and health institutions, child welfare homes, childcare centers, old age homes, orphanages, and other public places specified by the Government of Nepal by publishing a notice in the Nepal Gazette. (4) The Government of Nepal may, by publishing a notice in the Nepal Gazette, make provision that no person shall sell or distribute cigarettes, bidis, or cigars individually as loose sticks. (5) No person shall distribute or gift tobacco products free of charge. (6) If the Government of Nepal so desires, it may make provision requiring a license for selling and distributing tobacco products. (7) No person shall decorate a sales outlet or display such products in a manner that attracts towards tobacco products. Chapter-4 Inspection, Investigation, and Filing of Cases 12. Provisions Relating to Inspector: (1) The Government of Nepal may designate any officer-level employee of the Government of Nepal as an Inspector for the purpose of, among others, inspecting whether any person has or has not smoked or used tobacco products in a public place contrary to this Act, or whether the Producer or Manager has or has not fulfilled the matters required to be done under this Act. (2) The Inspector shall submit to the Ministry the details of the work carried out by them during the year. (3) Except as provided in this Act, other functions, duties, and powers of the Inspector shall be as prescribed. 13.

Power to Inspect: (1) The Inspector may inspect any public place within their jurisdiction to ascertain whether any person has or has not smoked or used tobacco products in a public place contrary to this Act, or whether the Producer or Manager has or has not fulfilled the matters required to be done under this Act. (2) If, during an inspection pursuant to Sub-section (1), it is not found that any person has smoked or used tobacco products in the public place, or that the Producer or Manager has fulfilled the matters required to be done under this Act, the Inspector may issue directions to the concerned Producer or Manager to prohibit smoking or tobacco use in such place or to fulfill the matters required to be done under this Act, or may bring the matter to their attention. (3) It shall be the duty of the concerned Producer or Manager to comply with the directions issued or the attention brought by the Inspector pursuant to Sub-section (2). 14. Manager to Inspect: (1) The Manager shall, from time to time, inspect or cause to be inspected the public place under their authority to ascertain whether any person has or has not smoked or used tobacco products. (2) If, during an inspection pursuant to Sub-section (1), any person is found to be smoking or using tobacco products, the Manager shall immediately prohibit such smoking or tobacco use. (3) If any Manager smokes or uses tobacco products in a public place, the person or employee associated with that place, and in the case of a public vehicle, any passenger of such vehicle, shall immediately prohibit the Manager from smoking or using tobacco products. (4) If the Manager smokes or uses tobacco products as per Sub-section (3), a person who knows of or sees this may file a complaint with the Inspector. 15. Investigation and Inquiry: If a complaint is

lodged or the Inspector receives information from any source that a Manager has smoked or used tobacco products in a public place, or that a Producer or Manager has failed to fulfill the matters required under this Act, the Inspector shall conduct the necessary investigation and inquiry in relation thereto. 16. Filing of Cases: (1) If it appears from the investigation and inquiry conducted pursuant to Section 15 that a case should be initiated against the Producer or Manager, the Inspector shall file a case before the Adjudicating Officer within twenty-five days from the date of completion of such investigation and inquiry. (2) While filing a case pursuant to Sub-section (1), the Inspector shall obtain the opinion of the concerned Government Attorney. Chapter-5 Penalties and Appeal 17.

Penalties: (1) If any person smokes or uses tobacco products in a public place contrary to this Act, the Manager shall impose the following penalties:- (a) Immediately prohibit such smoking or tobacco use, and if the person fails to comply with such prohibition or repeatedly smokes or uses tobacco products, expel them from such public place or impose a fine of one hundred rupees, or both penalties. (b) If the person smoking or using tobacco products is a person or employee associated with the public place, immediately prohibit the smoking or tobacco use, and if they repeatedly smoke or use tobacco products, treat them as being in breach of discipline and issue a warning or take other departmental action in accordance with the law relating to their service conditions. (2) If a Manager smokes or uses tobacco products in a public place contrary to this Act, they shall be treated as being in breach of discipline and the authorized officer according to law shall issue a warning or take departmental action against them. (3) The amount collected as a fine by the Manager pursuant to Clause (a) of Sub-section (1) shall be deposited into the revenue account. (4) The decision made by the Manager or the authorized officer pursuant to Sub-section (1) or (2) shall be final. (5) In the following circumstances, the Adjudicating Officer shall impose the following penalties on the concerned person:- (a) If a notice is not posted pursuant to Section 5, a fine of up to five thousand rupees, (b) If any act required under Sections 7, 8, and 9 is not performed, confiscation of such tobacco products and a fine of up to fifty thousand rupees, (c) If any act contrary to Section 10 is done, a fine of up to one hundred thousand rupees, (d) If any act contrary to Section 11 is done, a fine of up to ten thousand rupees, (e) For any other act contrary to this Act, other than those mentioned in Clauses (a), (b), (c), and (d), a fine of up to five thousand rupees. 18. Appeal: A person dissatisfied with the decision made by the Adjudicating Officer pursuant to Sub-section (5) of Section 17 may file an appeal with the concerned amended by the Act to Amend Some Nepal Acts, 2072.District Court within thirty-five days from the date of such decision. Chapter-6 Miscellaneous 19.

Formation of Committee: (1) For the purpose of, among others, determining policy in relation to the control and regulation of tobacco products, a Tobacco Products Control and Regulation Committee shall be formed consisting of the following members:- (a) Secretary, Ministry of Health and Population - Chairperson (b) Director, National Health Education Information and Communication Centre - Vice-Chairperson (c) One person nominated by the Ministry from among individuals working in government health institutions involved in the prevention or treatment of cancer, lung, or heart diseases - Member (d) Two persons, including one woman, nominated by the Ministry from among individuals working in non-governmental organizations established with the objective of controlling smoking and tobacco use and in private sector health institutions - Member (e) One person nominated by the Ministry from among individuals working in the social sector - Member (f) Law Officer, Ministry of Health and Population - Member-Secretary (2) The term of office of the nominated members pursuant to Sub-section (1) shall be two years. (3) Notwithstanding anything contained in Sub-section (1), a nominated member may be removed from the post on prescribed grounds. (4) The Secretariat of the Committee shall be provided by the Ministry. (5) The procedures relating to the meetings of the Committee shall be as determined by the Committee itself. (6) The Committee may, if it deems necessary, invite experts from related fields to its meetings. 20.

Functions, Duties, and Powers of the Committee: The functions, duties, and powers of the Committee shall be as follows:- (a) To submit suggestions to the Ministry regarding policies to be adopted and laws to be amended for the control and regulation of tobacco products, (b) To conduct awareness programs regarding the negative impacts of smoking and tobacco use to discourage them, (c) To adopt necessary measures for helping individuals addicted to smoking or tobacco use to overcome such addictions and lead a healthy life, (d) To monitor and evaluate the work and activities of Inspectors, (e) To issue necessary directions to Inspectors regarding their work and activities, (f) To coordinate with relevant bodies to include topics relating to the harm caused to health by tobacco products in textbooks, (g) To carry out necessary work for the reduction of import, production, sale, distribution, and consumption of tobacco products, (h) To mobilize resources for the control of import, production, sale, distribution, and consumption of tobacco products and for the prevention and treatment of diseases caused by the use of tobacco products, (i) To perform or cause to perform such other functions as prescribed.

21. Confiscated Tobacco Products to be Destroyed: (1) The Adjudicating Officer shall destroy the tobacco products confiscated under this Act. (2) While destroying tobacco products pursuant to Sub-section (1), the Adjudicating Officer shall do so in a manner that does not adversely affect human health and the environment.

22. Health Tax Fund: (1) The Government of Nepal shall establish a Health Tax Fund for the control of smoking and tobacco products and for the prevention and treatment of diseases caused by their consumption. (2) In addition to the amount allocated annually by the Government of Nepal, amounts as prescribed shall be deposited into the Fund established pursuant to Sub-section (1). (3) The amount allocated pursuant to Sub-section (2) shall not be less than the amount allocated in the previous fiscal year. (4) The amount deposited in the Fund under this Section shall be expended as prescribed.

23. Case to be on behalf of Government: A case under this Act shall be on behalf of the Government of Nepal.

24. Summary Procedure to be Followed: While conducting proceedings and disposing of a case under this Act, the Adjudicating Officer shall follow the procedure under the Summary Procedure Act, 2028.

25. Adjudicating Officer: The initial proceedings and disposal of a case under this Act shall be carried out by the Chief District Officer of the concerned district.

26. Assistance to be Provided: While performing any work or activity under this Act, the Manager or Inspector may request the assistance of the local administration.